

Zoning Actions and Variances

"That reminds me of zoning actions," Scotty said. "If there are zoning actions currently in effect in a community, development projects will feel the impact."

"What sort of zoning actions?" Jerry asked.

"Well, for instance, moratoriums, variances, special use permits, and rezoning."

Moratorium

"We had to do a **moratorium** a few years back," Scotty continued. "Our schools were over-crowded, and we thought it best to put a halt to any new development until more schools could be built. This took two years, and a lot of developers were pretty unhappy with us, but in the end, it was best for everyone."

Sal added, "If someone-one of our clients, for instance-wants a **variance** on a use permitted within a zone, they go before the zoning board of appeals, right, Brad?"

Variance

"A **variance** , as everyone in this room probably knows," Brad said, "is a permitted deviation in the requirements of the zoning ordinance. It could be something as small and insignificant as a nine-and-a-half-foot setback where a 10-foot setback is required. Or it could be something more significant. A property owner who wants a variance has to apply to the zoning board of appeals.

"The two basic types of variances are use and area. A **use variance** allows the owner to use the land for a purpose that would otherwise be prohibited by the current zoning. To get a use variance approved, the owner has to show that the current zoning restrictions are causing the owner unnecessary hardship. The owner would have to prove four specific criteria:

- The economic benefit or use of the property is eliminated due to the zoning. This claim would have to be accompanied by financial evidence of some sort.
- The hardship is unique to this property and not something endemic to the neighborhood.
- The requested variance will not alter the essential character of the neighborhood.
- The hardship that is being claimed is not self-inflicted.

"If we approve a use variance, we'll grant the minimum variance needed to address the unnecessary hardship, keeping in mind the health, safety, and welfare of the neighborhood.

"An **area variance** , on the other hand, allows the owner to use the land in a way that is not normally allowed by the physical or dimensional requirements of the current zoning. We had one come up just last week where the owner of a lot wanted to build a home on a property that was zoned for 10,000-square-foot lots. The lot was only 9,585. We had to determine if the variance would be:

- Undesirable or a detriment to the nearby properties
- Achieved by any other means
- Substantial
- Detrimental to the physical or environmental conditions in the neighborhood

"Our final criteria was whether the difficulty was self-created. It probably was-the owner bought the property knowing about the zoning, and planned to ask for a variance from the get-go. But this last criteria often won't preclude our granting a variance.

Special Use Permits

"A **special use permit** , also called a **conditional use permit** , might be allowed if someone wants to use a property in a way that isn't really in accordance with zoning regulations, but will provide a service that is in the public interest, like a golf course," Brad said. "It's granted for a use that's not permitted in the zone otherwise and requires special permission of the planning board or another legislative body. A special use permit requires a public hearing. It doesn't require that the property owner show hardship because of the current zoning. As long as the use is in harmony with local zoning ordinances and laws, does not adversely affect the neighborhood, and is beneficial to the community, the zoning board of appeals will usually grant a special use permit, which is sometimes called a use permit, special exception permit, or special permit."

Non-Conforming Use

"One other thing I'll mention is **non-conforming use** . When zoning is first placed in an area or an area is rezoned, so the zoning is new, any existing uses that don't comply with the zoning are grandfathered in. This is called a non-conforming use. There's nothing wrong or illegal about a non-conforming use; however, when the owner sells the property that's non-conforming, the new owners will usually have to comply with the current zoning."

